

IN THE CORONER'S COURT FOR WEST YORKSHIRE (EASTERN)

Before HM Senior Coroner Alistair CRENSHAW-VANE

INQUEST TOUCHING THE DEATH OF TOMASZ WIECZOREK (deceased)

Coroner's reference: WYE/2023/1174

NOTE OF PRE-INQUEST REVIEW HEARING

Heard 6 June 2025 — Wakefield Coroner's Court

Interested persons	(1) Mrs Agnieszka Wieczorek (widow); (2) Meridian Structures Limited; (3) TowerLine Access Ltd (in liquidation), by its liquidator; (4) Northgate Site Solutions Ltd; (5) Coldbrook Capital LLP; (6) Health and Safety Executive; (7) Mr Aldwyn Ferris
Appearances	Ms Delphine Arkwright-Osei of counsel for the widow; Mr Callum Speight KC for Meridian; Ms H. Lindqvist-Bray for HSE; Mr Ferris in person, assisted by solicitor
Recording	Digital audio, ref. PIR/1174/03

1. PURPOSE AND SCOPE

1.1 This was the third pre-inquest review. The purpose was to determine (a) whether the inquest engages the procedural obligation under Article 2 ECHR; (b) the scope of the inquest; (c) whether a jury is required; and (d) directions pending the conclusion of the criminal investigation.

1.2 The inquest was opened and adjourned on 21 November 2023. It has been adjourned under paragraph 1 of Schedule 1 to the Coroners and Justice Act 2009 at the request of the Director of Public Prosecutions on three occasions.

2. JURY

2.1 It is common ground that a jury is required by s.7(2)(c) of the Coroners and Justice Act 2009, the death having resulted from an accident, poisoning or disease notice of which is required to be given under RIDDOR to an inspector. Mr Speight KC reserved the position as to whether the death “resulted from” a notifiable accident, on the basis that the Article 2 argument might affect the analysis. I did not accept that reservation but recorded it.

3. ARTICLE 2

3.1 Ms Arkwright-Osei submits that the enhanced investigative duty is engaged. She relies on (i) the regulatory history summarised at paragraph 3.3 below; (ii) the withdrawal of Improvement Notice IN/YNE/23/9944 on 19 January 2024; and (iii) the contention that the State, through HSE, had knowledge of a real and immediate risk to life at this site and failed to act, relying by analogy on *Rabone v Pennine Care NHS Foundation Trust* [2012] UKSC 2 and *R (Morahan) v HM Assistant Coroner for West London* [2022] EWCA Civ 1410.

3.2 Mr Speight KC and Ms Lindqvist-Bray both resist. Ms Lindqvist-Bray submits that the operational duty does not ordinarily arise in the regulatory context of workplace safety and that this is a case of alleged ordinary negligence by private parties, for which the ordinary system of criminal and civil law suffices.

3.3 The regulatory history is as follows. On 14 June 2023 an anonymous concern was made to HSE’s contact centre alleging “unsafe loading platforms at the Hunslet grain store job”. It was triaged as “no visit” on 21 June 2023. On 2 August 2023 an unannounced inspection of the site was carried out by a different inspector (Mr D. Quenneville) who recorded “scaffold generally good, TW paperwork not examined”. On 12 October 2023 a further concern was received naming Mr Delacroix-Hale and alleging “bays loaded over capacity”; the contact record shows it was closed on 30 October 2023 with the entry “PC contacted, assurance received”. HSE has been unable to identify who at Meridian gave that assurance. Meridian states that no such contact is recorded in its systems.

3.4 I do not determine the Article 2 issue today. I direct HSE to file, by 4pm on 25 July 2025, an unredacted copy of the contact records for 14 June, 12 October and 30 October 2023, together with an explanation of the triage decisions, or a claim to public interest immunity properly particularised. I will determine Article 2 on the papers thereafter unless a party requests an oral hearing.

4. SCOPE

4.1 Provisionally, and without prejudice to the Article 2 ruling, the scope will include: the erection, tying and inspection of the scaffold; the temporary works design and checking regime; the system for controlling loading of the bays; the control of lifting operations in adverse weather; the induction and supervision of agency workers; and the allocation of safety-critical roles.

4.2 Mr Speight KC applies to exclude from scope any inquiry into (a) the commercial arrangements between Meridian and Coldbrook Capital LLP, and (b) the circumstances of the dismissal of Ms Raghunathan. He submits both are collateral and that admitting them would convert the inquest into a trial of Meridian's commercial conduct, contrary to r.22 of the Coroners (Inquests) Rules 2013 and the prohibition in s.10(2) of the 2009 Act on appearing to determine civil liability.

4.3 Ms Arkwright-Osei resists, submitting that commercial pressure is squarely a causative circumstance in which the deceased came by his death and cannot be severed from it, and that the Raghunathan material goes directly to whether the alleged falsification occurred.

4.4 I indicated provisionally that the commercial pressure is within scope insofar as it bears on the decisions taken on 13 and 14 November 2023, but that the tribunal proceedings themselves are not. I invited written submissions on whether evidence of the alleged backdated board minute (Bundle D18) is admissible before this court, and if so for what purpose.

5. WITNESSES AND EVIDENTIAL DIFFICULTIES

5.1 Mr Delacroix-Hale, through solicitors, indicates that he will decline to answer any question the answer to which may tend to incriminate him, relying on r.22. Mr Speight KC accepts that the privilege is available to him personally.

5.2 Mr Ashgrove-Pike is outside the jurisdiction. I have no power to compel his attendance. An application under the Evidence (Proceedings in Other Jurisdictions) Act 1975 is not available to a coroner. Consideration should be given to whether his witness statement may be read under r.23.

5.3 Mr Pyle has provided two statements which cannot both be true. The court was informed of the payments referred to at Bundle D01, paragraph 25 only on 12 May 2025. I record my concern. Any party proposing to call Mr Pyle must serve a full schedule of all payments, benefits and expenses provided to him by or on behalf of that party.

5.4 Mr Aksoy's covert recording (Bundle D20.2) is objected to by Meridian. My provisional view is that the strict rules of evidence do not apply in this court and the recording is likely to be admitted for what it is worth, but I will hear argument on fairness and on whether the disputed passages should be excised.

5.5 Mrs Wieczorek wishes to rely on an SMS message sent by the deceased at 09:41 on 14 November 2023. Meridian objects on the grounds of authenticity and multiple hearsay. Again, the strict rules do not apply, but weight is a real question.

5.6 The two agency operatives NSS-4402 and NSS-4419 have not been identified. I direct Northgate Site Solutions Ltd to file a witness statement by a director, verified by a statement of truth, explaining the loss of the assignment records and the steps taken to recover them. If that statement is not filed I shall consider a report under paragraph 7 of Schedule 5 to the 2009 Act and, if necessary, the powers in s.34 of that Act.

6. PREVENTION OF FUTURE DEATHS

6.1 I remind the interested persons that at the conclusion of the inquest I may make a report under paragraph 7 of Schedule 5. It is likely that the concentration of the Temporary Works Coordinator, Appointed Person and Permit Issuing Officer roles in a single individual will fall for consideration, as will the recording of anemometer readings by the person whose operations they govern.

7. DIRECTIONS

- HSE to file the material at paragraph 3.4 by 4pm, 25 July 2025.
- All interested persons to file written submissions on scope by 4pm, 8 August 2025, limited to 15 pages.
- Any party calling Mr Pyle to serve the payments schedule at paragraph 5.3 by 4pm, 8 August 2025.
- Northgate Site Solutions Ltd to file the statement at paragraph 5.6 by 4pm, 12 September 2025.
- Further pre-inquest review listed 10 October 2025, time estimate one day.
- Provisional inquest listing: three weeks commencing 9 March 2026, subject to the criminal proceedings.

Signed:

A. Crenshaw-Vane

Name / role:

A. Crenshaw-Vane — HM Senior Coroner, West Yorkshire (Eastern)

Date:

6 June 2025